

Court No. - 3

Case :- WRIT - C No. - 14040 of 2022

Petitioner :- Haji Ibrahim

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Ajay Kumar Srivastava

Counsel for Respondent :- C.S.C., Mukesh Kumar Singh

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

Heard learned counsel for the parties.

This writ petition has been filed praying for the following reliefs:

"(I) Issue a writ order or direction in the nature of certiorari quashing the demand notice dated 12.03.2022 issued by respondent no.3 for realizing of Rs. 54,09,393/- (Annexure No.8);

(II) Issue a writ order or direction in the nature of mandamus directing the respondent no.3 not to harass and pressurized the petitioner in pursuance of demand notice dated 12.03.2022.

(III) Issue a writ order or direction in the nature of mandamus directing the respondent no.3 to decide the representation of the petitioner dated 18.06.2021 (Annexure No.7) within stipulated period as directed by this Hon'ble Court.

(IV) Issue any other suitable writ petition or direction which this Hon'ble Court may deem fit and proper in the facts and circumstances of the case.

(V) Award cost of the writ petition to the petitioner throughout."

It is a case of the petitioner that without there being any default on the part of the petitioner in making payment of liability or without there being any illegality committed by the petitioner, demand notice dated 12.03.2022 has been issued to the petitioner.

Sri Mukesh Kumar Singh, learned counsel for the respondent No 2,3 and 4/ Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, this writ petition is ***disposed off*** giving liberty to the petitioner to submit his/ her objection under ***Para 6.5 of U.P. Electricity Supply Code, 2005*** before the respondent No.2 within four weeks from today along with a certified copy of this order. In the event such an objection is submitted within the stipulated period, it shall be decided by the respondent No.2 in accordance with law, expeditiously, preferably within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

For a period of eight weeks or till disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand.

Order Date :- 24.5.2022

T.S.